

Rampal Singh Yadav v. Chairman, U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 3 October 2024 · 2024:AHC-LKO:68463-DB
· Writ - C No. 8646 of 2024 · **Writ disposed; officer to decide reply and consider connection**

HEADNOTE

A provisional assessment notice under section 126 for Rs. 75,744 was not quashed while the consumer's reply remained undecided and no final assessment had issued. The writ was disposed of with a direction to opposite party no. 4 to decide that reply within two weeks of production of the certified copy, and to consider sympathetically any application for a domestic connection.

FACTUAL SUMMARY

The petitioner's premises carried arrears. After a checking on 2 August 2024 (report no. 4616/04), the licensee on 8 August 2024 gave him a provisional assessment notice under section 126 of the Electricity Act, 2003, for Rs. 75,744, treating alleged use on his domestic (LMV-1) connection as temporary (LMV-9) unauthorized use. He contended that reconstruction of the house began only after 12 April 2024 and that he had not used electricity dishonestly, and he submitted a reply on 2 September 2024. No final assessment had yet been issued.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

provisional assessment with reply pending

HOLDING

Where a provisional assessment notice under section 126 has been served, the consumer has replied, and no final assessment has yet issued, the writ is disposed of without quashing the notice or directing supply. Opposite party no. 4 must consider the reply to the show-cause notice and take an appropriate decision within two weeks of production of a certified copy. An application for a domestic connection, if moved with a copy of the order, is to be considered sympathetically and decided by an appropriate order. ¶ 1-2

PRINCIPLE TAGS

assessment-6.8-alternate-remedy The Court did not decide unauthorized use, the Rs. 75,744 demand, or the clause 6.8 assessment sought in the petition. It disposed of the writ by sending the pending reply back to the officer who issued the provisional notice. ¶ 1-2

demand-notice-objections-under-6.8(b)(i) The petitioner's reply to the section 126 provisional assessment notice was left for opposite party no. 4 to consider, with a decision required within two weeks of production of the certified copy. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER TREATING THE DOMESTIC (LMV-1) SUPPLY AS TEMPORARY (LMV-9) UNAUTHORIZED USE, AND THE PROVISIONAL DEMAND OF RS. 75,744, WERE SUSTAINABLE
Left to opposite party no. 4 on the petitioner's reply ¶ 1-2

NOT DECIDED — WHETHER A DOMESTIC ELECTRICITY CONNECTION MUST BE GRANTED
Only sympathetic consideration and an appropriate order were directed ¶ 1-2

